

**Justification Review Document
for an Exception to Fair Opportunity – FAR 16**

Program/Equipment: United States Army Human Resources Command (HRC) requires renewal of IBM Software Licenses and Support that support HRC, U.S. Army Recruiting Command (USAREC) and U.S. Army Cadet Command (USACC).

Authority: FAR 16.505(a)(4) – Restricting consideration to an item peculiar to one manufacturer (e.g., a particular brand-name, product, or a feature of a product that is peculiar to one manufacturer.

Amount: [REDACTED]

Prepared by:

[REDACTED]

DSN: [REDACTED]
Date: 11 Mar 25

Contracting Officer:

JoDeen M. Cuffe
Contracting Officer
Email: jodeen.m.cuffe.civ@army.mil

DSN: 464-3513
Date: 11 Mar 25

Technical:

[REDACTED]

DSN: [REDACTED]
Date: 11 Mar 25

[REDACTED]

DSN: [REDACTED]
Date: 11 Mar 25

Requirements:

[REDACTED]

DSN: [REDACTED]
Date: 11 Mar 25

Reviews: I have reviewed this justification and find it adequate to support limiting competition.

Program Manager:

[REDACTED]

DSN: [REDACTED]

Date: See Digital Signature

[REDACTED]

Small Business Professional:

[Redacted]

DSN: [Redacted]

Date: See Digital Signature

MICC Legal Counsel:

[Redacted]

DSN: [Redacted]

Date: See Digital Signature

Division Chief, Mission Division 1:

[Redacted]

DSN: [Redacted]

Date: See Digital Signature

Director, MICC-Fort Knox:

[Redacted]

DSN: [Redacted]

Date: See Digital Signature

Assistant Director, Small Business Program:

[Redacted]

DSN: [Redacted]

Date: See Digital Signature

**Justification for an Exception
to Fair Opportunity Under FAR 16**

1. Contracting Activity: U.S. Army Mission and Installation Contracting Command (MICC) Center – Fort Knox, 199 6th Avenue, Suite 373, Fort Knox, Kentucky 40121-5720

2. Description of Action: HRC requests a firm-fixed-price order for the renewal of maintenance for IBM software licenses and support. The Government projects award in April 2025, subject to availability of funds, and fiscal year 2025 Operation and Maintenance, Army funds will be used. An acquisition plan is not required because this procurement does not meet the threshold at Defense Federal Acquisition Regulation Supplement 207.103(d)(i)(B).

3. Description of Supplies/Services: This procurement consists of the renewal of the following software licenses and software support:

RN25-214 IBM Renewal (NASE)		
SITE ID 7643004 NASE - Louis Imbrogno		
Part Number	Product Description	Qty
E04NZLL	IBM InfoSphere DataStage and QualityStage Designer Concurrent User Annual SW Subscription & Support Renewal	30
E04PFLl	IBM InfoSphere Information Services Director Processor Value Unit (PVU) License + SW Subscription & Support 12 Months	800
E04PHLL	IBM InfoSphere Information Services Director for Non-Production Environments Processor Value Unit (PVU) License + SW Subscription & Support 12 Months	800
E08DILL	IBM InfoSphere Information Analyzer for Non-Production Environments Processor Value Unit (PVU) Annual SW Subscription & Support Renewal	200
E04PYLL	IBM InfoSphere QualityStage for Non-Production Environments Processor Value Unit (PVU) Annual SW Subscription & Support Renewal	200
E04PQLL	IBM InfoSphere QualityStage Processor Value Unit (PVU) Annual SW Subscription & Support Renewal	800

D03U0LL	IBM InfoSphere DataStage for Non-Production Environments Processor Value Unit (PVU) from IBM InfoSphere DataStage Server Trade Up License + SW Subscription & Support 12 Months	1200
D03TWLL	IBM InfoSphere DataStage Processor Value Unit (PVU) SW Subscription & Support Reinstatement 12 Months	200
D03TZLL	IBM InfoSphere DataStage Processor Value Unit (PVU) from IBM InfoSphere DataStage Server PVU Trade Up License + SW Subscription & Support 12 Months	600

SITE ID 7644351 NASE - Jack Chandler		
Part Number	Product Description	Qty
D268ALL	IBM Cloud Pak for Integration Virtual Processor Core Subscription License Upgrade	59
D29A2LL	IBM WebSphere Hybrid Edition Virtual Processor Core Subscription License Upgrade (Virtual Processor Core)	24
E0HPVLL	IBM DB2 Advanced Enterprise Server Edition Processor Value Unit	600

SITE ID 7902839 RSN - Chuck Broadfoot		
Part Number	Product Description	Qty
E04NZLL	IBM InfoSphere DataStage and QualityStage Designer Concurrent User Annual SW Subscription & Support Renewal	30
E04PFLL	IBM InfoSphere Information Services Director Processor Value Unit (PVU) Annual SW Subscription & Support Renewal	400
E04PHLL	IBM InfoSphere Information Services Director for Non-Production Environments Processor Value Unit (PVU) Annual SW Subscription & Support Renewal	800
E0EI6LL	IBM InfoSphere QualityStage Address Verification Interface Install Annual SW Subscription & Support Renewal	1
E0JBPLL	IBM InfoSphere QualityStage Address Verification Interface for Non-Prod Environments Install Annual SW Subscription & Support Renewal	2
E04PYLL	IBM InfoSphere QualityStage for Non-Production Environments Processor Value Unit (PVU) Annual SW Subscription & Support Renewal	1200
E04PQLL	IBM InfoSphere QualityStage Processor Value Unit (PVU) Annual SW Subscription & Support Renewal	800
D03TZLL	IBM InfoSphere DataStage Processor Value Unit (PVU) from IBM InfoSphere DataStage Server PVU Trade Up License + SW Subscription & Support 12 Months	1360

Period of Coverage: 1 April 2025 to 31 March 2026

Total Value: [REDACTED]

4. Authority Cited: FAR 16.505(a)(4) – Restricting consideration to an item peculiar to one manufacturer (e.g., a particular brand-name, product, or a feature of a product that is peculiar to one manufacturer.

5. Reason for Authority Cited:

a. HRC and USAREC own all the software provided in paragraph 3 in perpetuity. This procurement is for software maintenance services and updates. IBM is the sole provider/ manufacturer of the software listed in paragraph 3 and is the only source of patches and updates for the software which are proprietary. IBM provides both the software and maintenance support through multiple approved resellers on the CHESSTES-SW2 contract suite.

b. IBM Infosphere Datastage products cleanse and load tables in the Enterprise Data Warehouse that support command level reports vital to determining mission requirements. The Datastage tool has been used by this command since FY 2000. Quality Stage and Information Analyzer are in the same IBM software suite and are deployed together to work as a seamless process that allows developers to program a single process for extracting, transforming, performing data quality checks, and loading into databases.

c. IBM WebSphere application software accelerates the development, quality, and deployment of Java, Web 2.0, mobile and service-oriented architectures for the HRC datacenter.

d. HRC and USAREC's IBM InfoSphere products allow the command to virtualize data and provide information in a simplistic form that applications and users require versus displaying the underlying complex source data. Also, Infosphere enables information to be accessed through a common interface that centralizes the control of data access.

e. The IBM Message Que suite of products enables the transfer of files between systems using a managed and auditable methodology regardless of file size or operating system. These products provide HRC with a method to reliably manage secure file transfers.

f. The renewal of the subscription and associated support ensures our ability to maintain current versions of the products employed and provides for continued technical support (both operational and analytical) without further investment in new software and extensive training for its workforce.

g. An alternate software product will increase the risk of incompatibility issues with existing equipment and systems, incur greater cost for equipment and software, and the need for additional training for the IT workforce. Further, HRC and USAREC collectively have an extensive financial investment of approximately \$6 million in IBM software all of which is used to support the mission. An alternative would require extensive multiyear project planning and implementation to change this suite of software. Even if the commands procured an alternative, the maintenance support requested in this procurement would still be required while reprogramming of the alternative was ongoing.

h. The IBM Infosphere Datastage products and associated software suite are essential to provide effective business rules to records prior to loading into tables. The quality checks provided by this software are essential to the effective analysis of the data. A lack of support will severely diminish the Enterprise Service Bus team's ability to support data conversion and data transfers for the HRC missions involving Standard Electronic Processing System (SEPS), Department of the Army Mobilization Processing System (DAMPS), Unemployment Compensation for Ex-Service members (UCX) and the HRC/USAREC mainframe. Multiple essential mission partners depend upon HRC

ability to perform these functions. Without this software maintenance contract, the commands will fail in their efforts to support these programs and would seriously degrade the ability to support decision making and support within USAREC.

6. Actions to Increase Competition: HRC consistently reviews the equipment and software prior to the end of its lifecycle to ensure that all available hardware/software available from industry are considered. HRC will continue to monitor advancements in commercially available information technology products and services, particularly those listed within existing enterprise-related contracts under the Army CHESS Program and the DOD ESI agreements.

7. Market Research: The items requested fall within scope of the CHESS ITES-SW2 suite of contracts. Per AFARS 5139, all in-scope items must be procured through CHESS contract vehicles unless a statement of non-availability and ITAS waiver exist for the product that the government desires to obtain. On 27 February 2025, HRC posted two requests for information (RFI), 524483 (NASE) and 524481 (RSN), to the CHESS platform under the ITES-SW2 suite of contracts for the purpose of market research. Requests closed on 6 March 2025 with responses received from three vendors for 524483 (NASE) and from four vendors for 524481 (RSN). The vendors responding were of varying business size and indicated in the affirmative they could meet the requirement. The findings indicate that the action may be solicited under ITES-SW2 with expectation of competition.

8. Other Facts: Procurement History.

Contract: W52P1J20D0053 / W9124D24F0168

Contractor: Four Inc.

Award Date: 01 April 2024

Competitive Status: Brand name only

Authority Cited: FAR 16.505(a)(4)

Contract: W52P1J20D0053 / W9124D22F171

Contractor: Four Inc.

Award Date: 01 April 2022

Competitive Status: Brand name only

Authority Cited: FAR 16.505(a)(4)

Contract: W52P1J20D0053 / W9124D21F0234

Contractor: Four Inc.

Award Date: 01 April 2021

Competitive Status: Brand name only

Authority Cited: FAR 16.505(a)(4)

Contract: GS35F0218M / W9124D-20-F-0260

Contractor: Unistar-Sparco Computers

Award Date: 1 April 2020

Competitive Status: Brand name only

Authority Cited: FAR 8.405-6(b)(1)

9. Technical Certification: I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

[Redacted Signature]

Date: See Digital Signature

[Redacted Signature]

Date: See Digital Signature

10. Requirements Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

[Redacted Signature]

Date: See Digital Signature

11. Fair and Reasonable Cost Determination: I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable. This determination will be made using one or more of the following: competitive prices, historical prices, and market prices. As a part of this basis, certified cost or pricing data will not be required and the following exceptions apply (FAR 15.403): Prices that will be agreed upon are based on adequate price competition; a commercial item is being acquired.

[Redacted Signature]

Date: See Digital Signature

JoDeen M. Cuffe
Contracting Officer

12. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

[Redacted Signature]

Date: See Digital Signature

JoDeen M. Cuffe
Contracting Officer

Approval

Based on the foregoing justification, I hereby approve the procurement of IBM Software Licenses and Support using an exception to fair opportunity pursuant to the authority of Federal Acquisition Regulation 16.505(a)(4)-Restricting consideration to an item peculiar to one manufacturer. The estimated value of the contract is [REDACTED] for a period of performance from [REDACTED] through 31 March 2026. This approval is subject to availability of funds, and provided that the services or supplies herein described have otherwise been authorized for acquisition.

[REDACTED]

[REDACTED]